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Case Number: 25CHCV02593 Hearing Date: July 30, 2026 Dept: F43

Dept. F43

Hearing Date: 07-30-26

Case # 25CHCV02593, Grassu v. Kledjian,
et al.

Trial Date: 03-12-29

MOTION TO COMPEL

FURTHER RESPONSES TO FORM INTERROGATORIES AND SPECIAL INTERROGATORIES

MOVING PARTY: Defendant Hratch Kledjian

RESPONDING PARTY: Plaintiff Sofrone Grassu

RELIEF REQUESTED

Order compelling plaintiff Sofrone Grassu's
verified, objection-free responses to defendant Hratch Kledjian's first set of
form interrogatories number 17.1 and first set of special interrogatories
numbers 1, 37-41, 43-51, and 62. Order
imposing \$2,160 in monetary sanctions against plaintiff Grassu and plaintiff's
counsel Bretil Beitmirza, Esq. and Jacoby & Meyers Attorneys LLP, jointly
and severally.

RULING: Motion is granted in part and denied in part. The court awards defendant Kledjian \$1,635 in
monetary sanctions. The court denies

Plaintiff's request for monetary sanctions.

SUMMARY OF ACTION

This personal injury action arises from a vehicle collision that occurred on July 31, 2023, around 10:30 a.m. at the intersection of Balboa Boulevard and Parthenia Street. Plaintiff Sofrone Grassu (Plaintiff) alleges he was rear-ended by defendant Hratch Kledjian who was driving in an unsafe manner – following Plaintiff's vehicle too closely. As a result, Plaintiff sustained personal injuries and damages. On July 23, 2025, Plaintiff filed a Complaint, asserting a single negligence cause of action. Defendant Kledjian filed an answer on September 24, 2025. Plaintiff recently identified defendant Doe 1 as Galpin Motors, Inc.

On October 31, 2025, defendant Hratch Kledjian (Defendant) served his first sets of form interrogatories, special interrogatories, and requests for production on Plaintiff. (Declaration of Megan K. Hawkins ¶¶ 4-5, 7, Exhs. 2-4.) Plaintiff served responses on January 20, 2026. (Id. ¶¶ 9-11, Exhs. 6-8.)

On March 3, 2026, defense counsel sent Plaintiff a "meet and confer" letter concerning issues with the interrogatory responses. (Hawkins Decl. ¶ 12, Exh. 9.) Counsel exchanged emails from March 9, 2026 through March 27, 2026, with defense counsel extending the time for Plaintiff to serve amended interrogatory responses and for Defendant to file motions to compel. (Hawkins Decl. ¶ 13, Exh. 10.) On April 6, 2026, Plaintiff served amended responses to the form and special interrogatories. (Hawkins Decl. ¶¶ 14-15, Exhs. 11-12.) Verifications were served on April 13, 2026. Defense counsel sent a "meet and confer" letter concerning the responses on May 4, 2026. (Hawkins Decl. ¶ 16, Exh. 13.) Counsel exchanged further emails from May 28, 2026 and June 29, 2026, extending time to provide amended responses and the time to file motions to compel to July 6, 2026. (Id. ¶ 17, Exh. 14.) Counsel met by telephone on June 29, 2026. (Hawkins Decl. ¶ 18.) Plaintiff asserts all responses are code-compliant.

On July 2, 2026, Defendant filed the instant motion to compel Plaintiff's further, objection-free responses to Defendants

first set of form interrogatories (number 17.1) and first set of special interrogatories (numbers 1, 37-41, 43-51, and 62) and to impose \$2,160 in monetary sanctions against Plaintiff and Plaintiff's counsel of record.

On July 17, 2026, Plaintiff filed an opposition, asserting form interrogatory No. 17.1 (concerning requests for admission numbers 60-64) is improperly directed at Plaintiff regarding matters outside his personal knowledge and seeks information Plaintiff discussed with his attorneys. Special interrogatory number 1 invades Plaintiff's right to privacy by seeking Plaintiff's private information to investigate whether Plaintiff was distracted while driving even though it is Defendant who rear-ended Plaintiff. Plaintiff's responses to special interrogatory numbers 37-41, 43-51, and 62 are code-compliant and seek information which is equally available to Defendant. Plaintiff has been forthright with discovery, providing Defendant with the requested information by disclosing previous accidents (November 8, 2024, December 19, 2022, and August 16, 2018) in response to form interrogatory numbers 10.3 and 11.1.

On July 21, 2026, Defendant filed a reply, stating Plaintiff has since served further responses to form interrogatory number 17.1, but only as the same pertains to the lack of unqualified admission to request for admission nos. 65, 66, and 69.

MEET AND CONFER

A motion to compel further responses to interrogatories must include a declaration stating facts showing a "reasonable and good faith attempt" to resolve the issues mentioned in the motion before filing. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) In Department F43, meet and confer means in person or via phone. A letter or email does not suffice. (Department F43 Courtroom Information, p. 2.)

The "meet and confer" requirement was met because counsel met and conferred telephonically on June 29, 2026. (Declaration of Megan K. Hawkins ¶ 18.)

ANALYSIS

A. Compelling

Further Responses to Form Interrogatory No. 17.1, regarding Requests for

Admission

A demanding party may move to compel further responses to form interrogatories where the demanding party fails to respond or responds with objections or incomplete answers.

(Code Civ. Proc., §§ 2030.290, 2030.300.) The demanding party must serve the motion to compel further within 45 days after service of verified responses, unless the parties agree, in writing, to extend the time to file. (Code Civ. Proc., § 2030.300, subd. (c).) If the responding party serves unverified responses, the 45-day time limit does not run until verified responses are served. (See *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 135-136.)

Each interrogatory response must be complete and straightforward and contain (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.220, subd. (a).)

Responses containing objections must state the specific ground for the objection. (Code Civ. Proc., § 2030.240, subd. (b).)

Because further form interrogatory responses were served responses to requests for admission numbers 65, 66, and 69, the court only addresses form interrogatory responses as to requests number 60, 61, 62, 63, and 64.

Requests for Admission numbers 60, 61, 62, 63, and 64 asks Plaintiff to "Admit that [Van Nuys Health & Wellness, ProHealth Advanced Medical Imaging, NeuroSpine Institute, Dynamic Physical Therapy, and Skyline Surgery Center were] not able to provide you with any [treatment or] imaging for the injuries you sustained as a result of the accident that gives rise to your complaint without getting prior authorization for that imaging from your attorneys."

Plaintiff objected to each response in part, asserting the request is vague, seeking information protected by attorney-client privilege and the attorney work-product doctrine, seeking information protected by Plaintiff's Constitutional right to privacy, seeking irrelevant information, and not reasonably calculated to lead to discovery of admissible evidence.

Defendant subsequently requested Plaintiff provide responses to corresponding form interrogatory number 17.1 in order to provide the facts underlying Plaintiff's unqualified responses to the requests for admission.

Plaintiff provided identical form interrogatory responses for requests 60-65.

Plaintiff's initial responses, served January 20, 2026, to subdivisions (b) through (d) contain objections: the request as vague, ambiguous, and overbroad concerning the term "authorization"; seeking premature disclosure of expert opinion in violation of Code of Civil Procedure sections 2034.210, 2034.220, and 2034.270; seeking information protected by attorney-client privilege and the attorney work-product doctrine; Evidence regarding availability of health benefits to Plaintiff and evidence purporting to support "mitigation of damages," is irrelevant, not reasonably calculated to lead to the discovery of admissible evidence, time consuming, prejudicial, and misleading (Pebbley v. Estrada (2018) Cal.App.5th 1266.); argumentative, harassing, and improper; as for recoverable medical expenses, the presence or absence of insurance is totally irrelevant; and the this request is not reasonably calculated to lead to the discovery of admissible evidence and seek information protected by Plaintiff's Constitutional right to privacy.) California Code of Civil Procedure section 2017.010; Cal. Const., Art. I, § I.).

Plaintiff's further responses are identical to the initial response.

Defendant contends further objection-free responses should be ordered because a plaintiff is only entitled to recover from a defendant the reasonable cost of reasonably necessary medical care that they have received. Defendant seeks information concerning the persons who controlled the treatment Plaintiff received which Plaintiff is claiming was obtained in connection with this action. If the named providers are controlled by Plaintiff's counsel in regards to what treatment Plaintiff could receive, then questions regarding bias and the reasonableness and necessity of that treatment have been raised. Communications between Plaintiff's counsel and disclosed medical treaters is not privileged.

In opposition, Plaintiff asserts he sought medical care and “was not a party to any alleged backend conversations between his attorneys and the billing departments of his medical providers, nor does he possess personal knowledge of them.” (Opposition at pp. 3:27-4:2.) Plaintiff insists that his discussions with his attorney concerning medical treatment are absolutely protected by the attorney-client privilege. (Opposition at p. 4:3-5.) What Plaintiff’s counsel may have discussed with a medical provider is privileged attorney work-product, and unless Plaintiff has personal knowledge of these communications from another, independent source, which Plaintiff has already established he does not, this information remains completely protected. (Opposition at p. 4:5-9.)

In response, Defendant further address Plaintiff’s responses to the underlying requests for admission. Defendant also notes Plaintiff’s “lack of personal knowledge” argument is contrary to law because Plaintiff cannot avoid providing substantive responses to form interrogatory number 17.1 on a ground of personally lacks knowledge. Plaintiff must make a reasonable inquiry.

However, the reasonable inquiry language is a requirement for responding to requests for admission, not the underlying form interrogatory number 17.1. Defendant has not filed a corresponding motion to compel further responses to requests for admission numbers 60-64 to address Plaintiff’s issues with the underlying requests for admission and Plaintiff’s failure to state a “lack of knowledge” in response to the request for admission.

Evidence of an attorney’s referral of a client to lien-physicians is “relevant to the question of the reasonable value of the lien-physicians’ medical care because it may show bias or financial incentives on the part of the lien-physician”—specifically, the incentive to inflate medical bills in order to win future referrals from the attorney. (Qaadir v. Figueroa (2021) 67 Cal.App.5th 790, 808; see also Nager v. Allstate Ins. Co. (2000) 83 Cal.App.4th 284, 291.)

However, as phrased, requests numbers 60-64 ask Plaintiff to admit that his providers could not treat him at all without prior authorization or direction from his attorneys—a question that probes the specific terms of the attorney-client relationship and the communications and

agreements between Plaintiff and counsel regarding treatment authorization.

The physician-patient privilege may be waived where Plaintiff brings an action for personal injuries. (*City and County of San Francisco v. Superior Court* (1951) 37 Cal.2d 227, 232-233.) However, a plaintiff's personal injury claim that waives the physician-patient privilege does not waive the attorney-client privilege with respect to discussions or communications about the injury. (*Id.* at pp. 234-238.) Moreover, attorney-directed activities receive at least qualified work-product protection as a matter of law. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 496.) The authorization of medical treatment is precisely the kind of attorney-directed activity that the work-product doctrine is designed to protect. Compelling Plaintiff to admit that his attorneys had to authorize treatment would reveal the nature and extent of counsel's involvement in directing the litigation, which is the essence of work product.

Furthermore, request numbers 60-64 ask Plaintiff to admit or deny whether his attorney controlled which medical providers could treat or provide imaging for his alleged injuries or told medical providers to treat Plaintiff's alleged injuries. This directly implicates facts (the alleged injuries and treatment) and legal strategy (whether counsel told Plaintiff to go to specific medical providers for a strategic purpose) which is protected by the attorney work-product doctrine.

This is qualitatively different from asking whether counsel referred Plaintiff to a particular provider, and it squarely implicates both the attorney-client privilege and the work-product doctrine. Moreover, the term "authorization" is vague and overbroad because it may include both privileged communications and non-privileged communications. Therefore, the court sustains the attorney-client privilege and work-product doctrine objections.

The court finds that the "premature expert opinion" objection lacks merit because Defendant is not seeking a medical diagnosis or a causation analysis but whether certain named providers were not able to treat or provide imaging to Plaintiff for her alleged injuries because of lack of authorization. No expert opinion is required to admit, deny, or provide underlying facts concerning whether Plaintiff's personal knowledge of the reasons for the inability to treat and the lack

imaging. The court also sustains the
“premature expert opinion” objection.

As for Plaintiff's privacy concerns, a plaintiff who
files a lawsuit for damages arising from a personal injury puts the injury and
its related body parts in controversy. (Vinson
v. Superior Court (1987) 43 Cal.3d 833, 389-390 (Vinson).) However, the privacy right waiver created by
filing a lawsuit “must be narrowly rather than expansively construed.” (Id. at p. 842.) “[A]n implicit waiver of a party's
constitutional rights encompasses only discovery directly relevant to the
plaintiff's claim and essential to the fair resolution of the lawsuit.” (Id.)

Here, the “compelling interest” standard applies because
of Plaintiff's fundamental interest and personal autonomy to his medical
records records. Whether a lien
arrangement exists between counsel and the named providers is relevant to
determining whether the treating providers have inflated the costs of treatment
to receive further attorney referrals in the future. This directly bears on the damages issue. Although Plaintiff has a valid
privacy
interest, discovery of the reasonable costs of Plaintiff's past and future
treatment is directly relevant to Plaintiff's claims. Thus, Plaintiff has waived her privacy rights
as to the requested information and the court overrules the privacy objection.

Because the court sustains Plaintiff's attorney-client
privilege, work-product doctrine, and vague and overbroad objections, the court
denies Defendant's motion to compel Plaintiff's further responses to form
interrogatory number 17.1 as it pertains to requests for admission numbers 60,
61, 62, 63, and 64.

B. Compelling Further Responses to Special Interrogatories

A demanding party may move to compel further responses to
interrogatories where the demanding party fails to respond or responds with
objections or incomplete answers. (Code
Civ. Proc., §§ 2030.290, 2030.300.) The
demanding party must serve the motion to compel further within 45 days after
service of verified responses, unless the parties agree, in writing, to extend
the time to file. (Code Civ. Proc., §
2030.300, subd. (c).) If the responding
party serves unverified responses, the 45-day time limit does not run until

verified responses are served. (See *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 135-136.)

Each interrogatory response must be complete and straightforward and contain (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.220, subd. (a).)

Responses containing objections must state the specific ground for the objection. (Code Civ. Proc., § 2030.240, subd. (b).)

Special Interrogatory number 1 asks Plaintiff to state his cell phone number on the date of the incident. Plaintiff served an objection-only response on January 20, 2026. No supplemental response was served.

Plaintiff first objected to this response as vague, ambiguous, and overbroad. The court overrules these objections because the request as phrased is clear and concise.

Plaintiff also objected to the interrogatory as seeking information not relevant or reasonably calculated to lead to discovery of admissible evidence. However, Defendant contends the information is necessary for Defendant to test Plaintiff's position that he was not on his cell phone during the incident. Defendant's position is that Plaintiff suddenly and without warning, made a right turn across the number 2 and number 3 lanes, directly in front of Defendant's vehicle. Plaintiff's phone number will allow Defendant to determine whether Plaintiff was distracted while driving and whether there were any potential witnesses Plaintiff contacted shortly after the accident. The court agrees and overrules Plaintiff's not reasonably calculated objection. (See *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1249-1250 [identifying potential witnesses is "routine and essential part of pretrial discovery"].)

Next, Plaintiff claims the interrogatory seeks to invade Plaintiff's right to privacy, demands premature expert opinions, seeks to violate attorney-client privilege and attorney work-product doctrine. Plaintiff's response does not provide sufficient evidence for the court to determine whether Plaintiff providing his

cell phone number would reveal confidential attorney-client communications or attorney litigation strategy. Finally, Defendant's countervailing interest in Plaintiff's phone number is substantial and directly tied to disputed facts in this matter—determining whether Plaintiff used his phone during the accident—which could establish comparative or contributory negligence. (See Defendant's Answer ¶ 2.) This is a legitimate and important litigation interest which outweighs Plaintiff's privacy interest as Plaintiff has put his injuries and the facts surrounding the incident at issue by filing this action. Thus, the court overrules the attorney-client privilege, work-product doctrine, and privacy objections.

Therefore, the court grants Defendant's motion to compel a further objection-free response to special interrogatory number 1 in Defendant's first set of special interrogatories served to Plaintiff on October 31, 2025.

Special interrogatory numbers 37 and 38 seek information about an accident that occurred on February 3, 2024: (1) each diagnosis Plaintiff received from any healthcare provider from the resulting injuries; and (2) the identity of the health care provider who treated Plaintiff for the injuries resulting from the February 3, 2024, accident.

Plaintiff's most recent amended responses objects on the following grounds: vague, ambiguous, and overbroad; as phrased, the request is argumentative; requires the adoption of an assumption which is improper; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff's medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff's constitutionally protected right to privacy under Article I, section I of the California Constitution.

In response to special interrogatory number 36, which asks Plaintiff to identify the body parts that were injured in a February 3, 2024, accident, Plaintiff responded in part by identifying his "chest and left shoulder." (Hawkins Decl., Exh. 8 at p. 28.) Because of Plaintiff's response to special

interrogatory number 36 indicates Plaintiff has some personal knowledge about the February 3, 2024, accident, the court overrules “adoption of an assumption” objection.

As phrased, numbers 37 and 38 seek information about Plaintiff's treatment and the diagnosis of his injuries from the February 3, 2024, accident. Because Plaintiff claims injuries to his neck, shoulders, chest, and lower back from the incident at issue in this case, Defendant has a legitimate interest in information concerning Plaintiff's treatment and diagnoses in the prior accidents because prior injuries could contribute to the current injuries, which is relevant to the issues of causation and damages in this matter. Thus, the court overrules Plaintiff's vague, ambiguous, overbroad, argumentative, and privacy objections. The interrogatories do not seek premature expert opinion because they ask Plaintiff to disclose information told to him by health care providers rather than ask Plaintiff to make a diagnosis or finding of his own. Thus, the court overrules the premature expert opinion objection. Finally, the court overrules the attorney-client privilege and work-product doctrine objections because Plaintiff fails to provide any facts demonstrating how the interrogatories implicate confidential attorney-client communications or attorney litigation strategy. Furthermore, the interrogatory seeks information within Plaintiff's personal knowledge.

Plaintiff also responded:

After a diligent search and a reasonable inquiry has been made in an effort to comply with this demand, Plaintiff is unable to comply because he has no present recollection or documents with such information. Therefore, Responding Party cannot produce information responsive to this request.

Responding Party specifically reserves the right to supplement this response without prejudice to the right to introduce new evidence at trial of any subsequently discovered facts. Discovery and investigation are continuing.

This portion of Plaintiff's responses is noncompliant because Plaintiff does not state that he will “make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations.” (Code Civ. Proc., § 2030.220, subd. (c).) As phrased, the only search and inquiry Plaintiff performed was of his own personal knowledge and his own documents. Plaintiff does

not state he has attempted to inquire to other persons or organizations, such as the treating physicians or providers.

Therefore, the court grants Defendant's motion to compel a further objection-free response to special interrogatory numbers 37 and 38 in Defendant's first set of special interrogatories served to Plaintiff on October 31, 2025.

Special interrogatory numbers 39, 40, and 41 seek information about an accident that occurred on January 26, 2023: (1) each body part that was injured in the accident; (2) each diagnosis Plaintiff received from any healthcare provider from the resulting injuries; and (3) the identity of the health care provider who treated Plaintiff for the injuries resulting from the January 26, 2023, accident.

Plaintiff's most recent amended responses objects on the following grounds: vague, ambiguous, and overbroad as to "injured"; as phrased, the request is argumentative; requires the adoption of an assumption which is improper; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff's medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff's constitutionally protected right to privacy under Article I, section I of the California Constitution.

Defendant asserts Plaintiff does not deny that he was in an accident on January 26, 2023. (Separate Statement at pp. 21:20, 24:7, 26:23.)

However, a review of the moving papers and Plaintiff's responses to the form interrogatories and requests for admission do not indicate that Plaintiff has ever admitted to or acknowledged the existence of an accident that occurred on January 26, 2023. Therefore, the court sustains Plaintiff's "adoption of an assumption" objection as to interrogatory numbers 39, 40, and 41.

However, the court overrules all other raised objections for the reasons stated as to interrogatory numbers 37 and 38.

Plaintiff also responded:

After a diligent search and a reasonable inquiry has been made in an effort to comply with this demand, Plaintiff is unable to comply because he has no present recollection or documents with such information. Therefore, Responding Party cannot produce information responsive to this request. Responding Party specifically reserves the right to supplement this response without prejudice to the right to introduce new evidence at trial of any subsequently discovered facts. Discovery and investigation are continuing.

As with interrogatory numbers 37 and 38, this portion of Plaintiff's responses is noncompliant because Plaintiff does not state that he will "make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations." (Code Civ. Proc., § 2030.220, subd. (c).) As phrased, the only search and inquiry Plaintiff performed was of his own personal knowledge and his own documents. Plaintiff does not state he has attempted to inquire to other persons or organizations.

Because the court sustained Plaintiff's "adoption of assumption" objection, the court denies Defendant's motion to compel a further objection-free response to special interrogatory numbers 39, 40, and 41 in Defendant's first set of special interrogatories served to Plaintiff on October 31, 2025.

Special interrogatory numbers 43 and 44 seek information about an accident that occurred on December 19, 2022: (1) each diagnosis Plaintiff received from any healthcare provider from the resulting injuries; and (2) the identity of the health care provider who treated Plaintiff for the injuries resulting from the December 19, 2022, accident.

Plaintiff's most recent amended responses objects on the following grounds: vague, ambiguous, and overbroad; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff's medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff's constitutionally protected right to privacy under Article I, section I of the California Constitution.

In response to special interrogatory number 42, which asks Plaintiff to identify the body parts that were injured in a December 19, 2022, accident, Plaintiff responded in part by identifying his "Left and right knees." (Hawkins Decl., Exh. 8 at p. 32.) Because of Plaintiff's response to special interrogatory number 42 indicates Plaintiff has some personal knowledge about the December 19, 2022, accident and the injuries that resulted from the accident, the court overrules "adoption of an assumption" objection.

As phrased, numbers 43 and 44 seek information about Plaintiff's treatment and the diagnosis of his injuries from the December 19, 2022, accident. Because Plaintiff claims his injuries from the accident in this matter are not limited to his neck, shoulders, chest, and lower back, Defendant has a legitimate interest in information concerning Plaintiff's treatment and diagnoses in the prior accidents because prior injuries could contribute to the current injuries, which is relevant to the issues of causation and damages in this matter. Thus, the court overrules Plaintiff's vague, ambiguous, overbroad, argumentative, and privacy objections. The interrogatories do not seek premature expert opinion because they ask Plaintiff to disclose information told to him by health care providers rather than ask Plaintiff to make a diagnosis or finding of his own. Thus, the court overrules the premature expert opinion objection. Finally, the court overrules the attorney-client privilege and work-product doctrine objections because Plaintiff fails to provide any facts demonstrating how the interrogatories implicate confidential attorney-client communications or attorney litigation strategy. Furthermore, the interrogatory seeks information within Plaintiff's personal knowledge.

Plaintiff also responded: After a diligent search and a reasonable inquiry has been made in an effort to comply with this demand, Plaintiff is unable to comply because he has no present recollection or documents with such information. Therefore, Responding Party cannot produce information responsive to this request. Responding Party specifically reserves the right to supplement this response without prejudice to the right to introduce new evidence at trial of any subsequently discovered facts. Discovery and investigation are continuing.

For the reasons stated concerning interrogatory numbers 37 and 38, this portion of Plaintiff's responses is noncompliant because

Plaintiff does not state that he will “make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations.” (Code Civ. Proc., § 2030.220, subd. (c).) As phrased, the only search and inquiry Plaintiff performed was of his own personal knowledge and his own documents. Plaintiff does not state he has attempted to inquire to other persons or organizations.

Therefore, the court grants Defendant’s motion to compel a further objection-free response to special interrogatory numbers 43 and 44 in Defendant’s first set of special interrogatories served to Plaintiff on October 31, 2025.

Special interrogatory numbers 45, 46, and 47 seek information about an accident that occurred on August 16, 2018: (1) each body party that was injured in the accident; (2) each diagnosis Plaintiff received from any healthcare provider from the resulting injuries; and (3) the identity of the health care provider who treated Plaintiff for the injuries resulting from the August 16, 2018, accident.

Plaintiff’s most recent amended response to number 45 objects on the following grounds: vague, ambiguous, and overbroad as to “injured”; as phrased is argumentative; requires the adoption of an assumption which is improper; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff’s medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff’s constitutionally protected right to privacy under Article I, section I of the California Constitution.

Plaintiff’s most recent amended responses to numbers 46 and 47 objects on the following grounds: vague, ambiguous, and overbroad; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff’s medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff’s constitutionally protected right to privacy under

Article I, section I of the California Constitution.

Plaintiff's "adoption of assumption" objection lacks merit because Plaintiff's response to request for admission number 10 admits an insurance claim concerning injuries sustained in an accident that occurred on August 16, 2018. (Hawkins Decl., Exh. 7 at p. 6.) Furthermore, Plaintiff admitted filing or making a written claim for demand for compensation for personal injuries concerning the August 16, 2018, accident in his amended response to form interrogatory 11.1 (Hawkins Decl., Exh. 11 at pp. 6-7.)

If Plaintiff made a claim for damages, Plaintiff would have personal knowledge of the claimed "injuries" for the August 16, 2018, accident and whether he received any treatments or diagnosis from healthcare providers. Thus, the court overrules the "adoption of assumption" objection raised in response to interrogatory number 45.

For the reasons stated as to interrogatory numbers 37 and 38, the court overrules all other objections raised by Plaintiff in responses to interrogatory numbers 45, 46, and 47.

Plaintiff also responded to numbers 45, 46, and 47 as follows: After a diligent search and a reasonable inquiry has been made in an effort to comply with this demand, Plaintiff is unable to comply because he has no present recollection or documents with such information. Therefore, Responding Party cannot produce information responsive to this request. Responding Party specifically reserves the right to supplement this response without prejudice to the right to introduce new evidence at trial of any subsequently discovered facts. Discovery and investigation are continuing.

For the reasons stated concerning interrogatory numbers 37 and 38, this portion of Plaintiff's responses is noncompliant because Plaintiff does not state that he will "make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations." (Code Civ. Proc., § 2030.220, subd. (c).) As phrased, the only search and inquiry Plaintiff performed was of his own personal knowledge and his own documents. Plaintiff does not state he has attempted to inquire to other persons or organizations.

Therefore, the court grants Defendant's motion to compel a further objection-free response to special interrogatory numbers 45, 46, and 47 in Defendant's first set of special interrogatories served to Plaintiff on October 31, 2025.

Special interrogatory numbers 48, 49, and 50 seek information about an accident that occurred on May 24, 2017: (1) each body part that was injured in the accident; (2) each diagnosis Plaintiff received from any healthcare provider from the resulting injuries; and (3) the identity of the health care provider who treated Plaintiff for the injuries resulting from the May 24, 2017, accident.

Plaintiff's most recent amended response to number 48 objects on the following grounds: vague, ambiguous, and overbroad as to "injured"; as phrased is argumentative; requires the adoption of an assumption which is improper; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff's medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff's constitutionally protected right to privacy under Article I, section I of the California Constitution.

Plaintiff's most recent amended response to numbers 49 and 50 objects on the following grounds: vague, ambiguous, and overbroad; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff's medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff's constitutionally protected right to privacy under Article I, section I of the California Constitution.

Defendant asserts Plaintiff does not deny that he was in an accident on May 24, 2017. (Separate Statement at pp. 41:23, 44:6, 46:18.) However, a review of the moving papers and Plaintiff's responses to the form interrogatories and requests for admission do not indicate that Plaintiff

has ever admitted to or acknowledged the existence of an accident that occurred on May 24, 2017. Therefore, the court sustains Plaintiff's "adoption of an assumption" objection as to interrogatory number 48 but overrules all other raised objections for the reasons stated as to interrogatory numbers 37 and 38.

As for interrogatory numbers 49 and 50, Plaintiff did not raise an "adoption of an assumption" objection. However, without information demonstrating the May 24, 2017, accident occurred or that Plaintiff sustained injuries as a result of the accident, the court cannot determine whether Defendant has demonstrated a legitimate interest which may outweigh Plaintiff's right to privacy. As such, the court sustains the privacy objection but overrules all other raised objections to interrogatory numbers 49 and 50 for the reasons stated as to interrogatory numbers 37 and 38.

Plaintiff also responded to numbers 48, 49, and 50 as follows: After a diligent search and a reasonable inquiry has been made in an effort to comply with this demand, Plaintiff is unable to comply because he has no present recollection or documents with such information. Therefore, Responding Party cannot produce information responsive to this request. Responding Party specifically reserves the right to supplement this response without prejudice to the right to introduce new evidence at trial of any subsequently discovered facts. Discovery and investigation are continuing.

For the reasons stated concerning interrogatory numbers 37 and 38, this portion of Plaintiff's responses is noncompliant because Plaintiff does not state that he will "make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations." (Code Civ. Proc., § 2030.220, subd. (c).) As phrased, the only search and inquiry Plaintiff performed was of his own personal knowledge and his own documents. Plaintiff does not state he has attempted to inquire to other persons or organizations.

Therefore, the court denies Defendant's motion to compel a further objection-free response to special interrogatory numbers 48, 49, and 50 in Defendant's first set of special interrogatories served to Plaintiff on October 31, 2025.

Special interrogatory number 51 asks Plaintiff to identify each part of his body that was injured in the accident that occurred on or about April 21, 2016.

Plaintiff's most recent amended response objects on the following grounds: vague, ambiguous, and overbroad as to "injured"; as phrased, the request is argumentative; requires the adoption of an assumption which is improper; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff's medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff's constitutionally protected right to privacy under Article I, section I of the California Constitution.

Defendant asserts Plaintiff does not deny that he was in an accident on April 21, 2016. (Separate Statement at p. 49:5.) However, a review of the moving papers and Plaintiff's responses to the form interrogatories and requests for admission do not indicate that Plaintiff has ever admitted to or acknowledged the existence of any such accident or injuries stemming from the accident. Therefore, the court sustains Plaintiff's "adoption of an assumption" objection as to interrogatory number 51. However, the court overrules all other raised objections for the reasons stated as to interrogatory numbers 37 and 38.

Plaintiff also responded to number 51 as follows: After a diligent search and a reasonable inquiry has been made in an effort to comply with this demand, Plaintiff is unable to comply because he has no present recollection or documents with such information. Therefore, Responding Party cannot produce information responsive to this request. Responding Party specifically reserves the right to supplement this response without prejudice to the right to introduce new evidence at trial of any subsequently discovered facts. Discovery and investigation are continuing.

For the reasons stated concerning interrogatory numbers 37 and 38, this portion of Plaintiff's responses is noncompliant because Plaintiff does not state that he will "make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations." (Code Civ. Proc., § 2030.220, subd. (c).) As phrased, the

only search and inquiry Plaintiff performed was of his own personal knowledge and his own documents. Plaintiff does not state he has attempted to inquire to other persons or organizations.

Therefore, the court denies Defendant's motion to compel a further objection-free response to special interrogatory number 51 in Defendant's first set of special interrogatories served to Plaintiff on October 31, 2025.

Special interrogatory number 62 asks Plaintiff to identify each health care provider who treated Plaintiff for the injuries resulting from an accident that occurred on January 17, 2003.

Plaintiff's most recent amended responses objects on the following grounds: vague, ambiguous, and overbroad; seeks premature disclosure of expert opinion in violation of Code of Civil Procedure §§ 2034.210, 2034.220, and 2034.270; seeks information protected by the attorney work product doctrine and attorney client privilege; and seeks to discover plaintiff's medical history and/or treatment which is completely unrelated to the issues in this litigation in violation of plaintiff's constitutionally protected right to privacy under Article I, section I of the California Constitution.

As phrased, number 62 seeks the identities of the health care providers who treated Plaintiff for injuries stemming from an accident that occurred on January 17, 2003. Thus, the court finds this request is clear and concise and does not seek information protected by the attorney-client privilege or the attorney work-product doctrine. The interrogatory does implicate Plaintiff's privacy rights and is overly broad. "[W]hile the filing of a lawsuit may implicitly bring about a partial waiver of one's constitutional right of associational privacy, the scope of such 'waiver' must be narrowly rather than expansively construed." (Britt v. Superior Court (1978) 20 Cal.3d 844, 859.) A plaintiff may waive the privilege as to prior medical or mental health records in an action for recovery on personal injury or for emotional distress as to medical conditions which have been put in issue. (Id. at p. 849, 863-864.)

Because interrogatory number 62 seeks medical information

from almost 20 years ago without establishing that an accident actually occurred, that Plaintiff sustained injuries from such an accident, or that the injuries from the accident relate to Plaintiff's injuries in this matter, Plaintiff has not put his medical condition as to any January 17, 2003 accident at issue. Nor has Plaintiff admitted that any such accident occurred. Therefore, the court sustains Plaintiff's privacy and overbroad objections. The court overrules the other objections as to vague and ambiguous, premature expert opinion, the attorney-client privilege, and the attorney work-product doctrine because Plaintiff fails to present facts to support the objections.

Plaintiff also responded to number 62: After a diligent search and a reasonable inquiry has been made in an effort to comply with this demand, Plaintiff is unable to comply because he has no present recollection or documents with such information. Therefore, Responding Party cannot produce information responsive to this request. Responding Party specifically reserves the right to supplement this response without prejudice to the right to introduce new evidence at trial of any subsequently discovered facts. Discovery and investigation are continuing.

For the reasons stated concerning interrogatory numbers 37 and 38, this portion of Plaintiff's responses is noncompliant because Plaintiff does not state that he will "make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations." (Code Civ. Proc., § 2030.220, subd. (c).) As phrased, the only search and inquiry Plaintiff performed was of his own personal knowledge and his own documents. Plaintiff does not state he has attempted to inquire to other persons or organizations.

Therefore, the court denies Defendant's motion to compel a further objection-free response to special interrogatory number 62 in Defendant's first set of special interrogatories served to Plaintiff on October 31, 2025.

C. Sanctions

Defendant asks the court to impose monetary sanctions of \$2,160 against Plaintiff and his counsel of record, Bretl Beitmirza and Jacoby

& Meyers Attorneys, LLP. (Hawkins Decl. ¶¶ 19-25.) In response, Plaintiff asks the court to impose \$1,000 in monetary sanctions against Defendant and his counsel of record for making this motion without substantial justification.

The court denies Plaintiff's request in part because no supporting declaration was provided with the opposition.

The court must impose monetary sanctions against a party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

Defendant is entitled to some sanctions because he prevailed in part on his motion and the objections raised in response to special interrogatory numbers 1, 37, 38, 43-47 lack merit. However, the court reduces the request because the motion was denied in part.

Defense counsel Megan K. Hawkins charges \$210 per hour. (Hawkins Decl. ¶ 19.) The request includes: 8.0 hours preparing the motion—\$1,680; 2.0 hours reviewing and replying to the opposition and attending the hearing—\$420; and a \$60 filing fee. (Id. ¶¶ 21-24; Reply Hawkins Decl. ¶ 4.)

The court finds the hourly rate is reasonable but reduces the request by 2.5 hours due to the motion being partially denied.

Therefore, the court grants defendant Hratch Kledjian monetary sanctions in the reduced amount of \$1,635: 5.5 hours preparing the motion—\$1,155; 2.0 hours reviewing and replying to the opposition and attending the hearing—\$420; and a \$60 filing fee

CONCLUSION and ORDER

Defendant Hratch Kledjian's motion to compel further responses to his first set of Form Interrogatories No. 17.1 as to Requests for Admission Nos. 60, 61, 62, 63, and 64 is denied.

Defendant Hratch Kledjian's motion to compel further responses to his for set of Special Interrogatories is granted in part for Nos. 1, 37, 38, 43, 44, 45, 46 and 47 and denied in part for Nos. 39, 40, 41, 48, 49, 50, 51, and 62.

Plaintiff Sofrone Grassu is ordered to serve further responses to Special Interrogatory Nos. 1, 37, 38, 43, 44, 45, 46 and 47 within 30 days of the issuing of this order, pursuant to Section B above.

The court awards defendant Kledjian \$1,635 in monetary sanctions. Plaintiff and his counsel of record are ordered to pay defendant Kledjian within 30 days of this issuing of this order.

Defendant Hratch Kledjian to give notice.